

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #08	CCRB Case #: 201702922	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 04/14/2017 4:49 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/14/2018	Precinct: 121
Date/Time CV Reported Sat, 04/15/2017 4:51 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 04/15/2017 4:51 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Canepa	01262	950150	121 PCT
2. POF Jamie Terrone	20902	955570	121 PCT
3. POM Vito Ingrassia	14177	960706	121 PCT
4. POM Anthony Crecca	15635	957494	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jamie Terrone	Abuse: Police Officer Jamie Terrone entered § 87(2)(b) in Staten Island.	A . Exonerated
B . POM Anthony Crecca	Abuse: Police Officer Anthony Crecca entered § 87(2)(b) in Staten Island.	B . Exonerated
C . POM Nicholas Canepa	Abuse: Police Officer Nicholas Canepa entered § 87(2)(b) in Staten Island.	C . Exonerated
D . POM Vito Ingrassia	Abuse: Police Officer Vito Ingrassia entered § 87(2)(b) in Staten Island.	D . Exonerated
E . POM Nicholas Canepa	Force: Police Officer Nicholas Canepa used physical force against § 87(2)(b)	E . Exonerated
F . POM Nicholas Canepa	Discourtesy: Police Officer Nicholas Canepa spoke discourteously to § 87(2)(b)	F . Substantiated

Case Summary

On April 14th, 2017, at around 4:45PM, § 87(2)(b) was with his son when he received a text message and two calls from his wife informing him that she and her mother, § 87(2)(b) had gotten into an argument. § 87(2)(b)'s wife went on to tell § 87(2)(b) that following this argument, § 87(2)(b) had called 911, and told the 911 operator that § 87(2)(b)'s daughter, § 87(2)(b) had attempted to commit suicide at her mother's house, which is at § 87(2)(b) in Staten Island. Police Officer Jamie Terrone, Police Officer Anthony Crecca, Police Officer Nicholas Canepa, and Police Officer Vita Ingrassia, all of the 121st Precinct, responded to the scene, and entered § 87(2)(b) after § 87(2)(b) opened the front door for the four MOS (**Allegations A-D**). § 87(2)(b) and his son rushed home. When § 87(2)(b) arrived at the house, he encountered PO Crecca, PO Ingrassia and PO Canepa at the bottom of the stairs that lead to the second floor of the house. PO Canepa informed § 87(2)(b) that he could not go upstairs, and grabbed § 87(2)(b)'s left forearm in order to prevent him from doing so (**Allegation E**). Before leaving, PO Canepa used the word "fuck" several times, while speaking to § 87(2)(b) about why he and the other three officers had come into the house (**Allegation F**). After this, § 87(2)(b) was removed to § 87(2)(b). § 87(2)(b) provided video footage of part of this incident.

Mediation, Civil, and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during his initial phone statement and during his in-person interview at the CCRB (BR01). In both instances, § 87(2)(b) rejected mediation.
- The NYC Office of the Comptroller responded to a request on June 13th, 2017, indicating that no notice of claim has been filed by § 87(2)(b) in regards to this incident (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian and Officer CCRB Histories

- During his in-person interview at the CCRB, § 87(2)(b) refused to provide pedigree information. There are four CCRB complaints filed by individuals with the name § 87(2)(b) and there is one CCRB complaint in which an individual named § 87(2)(b) was a witness (BR04). A Lexis Nexis search for § 87(2)(b) indicated that an a § 87(2)(b) who currently lives at the incident location has a date of birth that corresponds to one of the § 87(2)(b) § 87(2)(b) who has filed three complaints with the CCRB, and was victim in another CCRB Case (BR05) § 87(2)(b)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

- PO Terrone has been a member of service for three years, and this is the first CCRB complaint filed against her (BR06).
 - PO Crecca has been a member of service for two years, and this is the first CCRB complaint filed against him (BR07).
 - PO Canepa has been a member of service for five years, and this is the sixth CCRB complaint filed against him (BR08). § 87(2)(g), § 87(4-b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b) The previous five cases have generated a total of 12 allegations, four of which are Force-Physical force allegations, one of which is a Force-Hit against inanimate object allegation, one of which is a Force-Other allegation for allegedly forcibly removing an individual to the hospital, and one of which is a Discourtesy-Word allegation.
- PO Ingrassia has been a member of service for one year, and this is the first CCRB complaint filed against him (BR09).

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Jamie Terrone entered § 87(2)(b) in Staten Island.

Allegation B—Abuse of Authority: Police Officer Anthony Crecca entered § 87(2)(b) in Staten Island.

Allegation C—Abuse of Authority: Police Officer Nicholas Canepa entered § 87(2)(b) in Staten Island.

Allegation D—Abuse of Authority: Police Officer Vito Ingrassia entered § 87(2)(b) in Staten Island.

During his in-person interview at the CCRB, § 87(2)(g) § 87(2)(b) testified that on April 14th, 2017, at approximately 4:45PM, § 87(2)(b) was with his son at an undisclosed location when he received a phone call from his wife, who was at her home at § 87(2)(b) a two-story, two-family house in Staten Island (BR01). § 87(2)(b)'s wife informed him that she had gotten into a verbal altercation with her mother, § 87(2)(b) regarding § 87(2)(b) and his wife's § 87(2)(b) daughter, § 87(2)(b) § 87(2)(b)'s wife and § 87(2)(b) have a long-standing conflict over where § 87(2)(b) should be living, as § 87(2)(b) wants § 87(2)(b) to live with her in Brooklyn, rather than her with her mother in Staten Island. During the call, § 87(2)(b)'s wife informed § 87(2)(b) that during the argument she had told § 87(2)(b) to leave § 87(2)(b) so as to prevent any further escalation of the argument, and that § 87(2)(b) had complied with this request.

At 4:59PM, § 87(2)(b) received a text message from his wife in which she informed him that § 87(2)(b) had called the police and told them that § 87(2)(b) had attempted to commit suicide by jumping out of a window at § 87(2)(b) § 87(2)(b) has had a similar situation involving a mental health issue in the past that did not involve the police. § 87(2)(b) did not wish to provide further information regarding § 87(2)(b)'s mental health history.

As soon as § 87(2)(b) received this text message from his wife, he and his son immediately went to § 87(2)(b). At approximately 5:08PM, while § 87(2)(b) was still on his way to the house, he received a second call from his wife in which she informed § 87(2)(b) that she believed that the story about how § 87(2)(b) was going to attempt to commit suicide by jumping out a window had been fabricated by § 87(2)(b) and that it was possible that § 87(2)(b) had told § 87(2)(b) to call the police and tell them that she wanted to commit suicide. § 87(2)(b) agreed that the story had been fabricated by § 87(2)(b) § 87(2)(b).

About ten minutes after his wife called him for the second time, § 87(2)(b) arrived at the house. Inside the house, § 87(2)(b) saw that PO Crecca, PO Canepa, and PO Ingrassia were standing at the bottom of the stairs leading to the second floor of the house. § 87(2)(b) later also saw PO Terrone on the second floor helping § 87(2)(b) prepare to go to the hospital. § 87(2)(b) testified that the first floor of § 87(2)(b) is an open space which includes a kitchen, a dining room, and a living room. A staircase leads from the first floor to the second. On the second floor of the house there is a landing directly to the left of the staircase. At the end of the landing when facing away from the staircase is § 87(2)(b)'s bedroom. There are three additional rooms on the second floor of the house. § 87(2)(b) refused to provide the names of anyone who witnessed the incident, as he did not want them to get involved in the case.

During a phone statement, § 87(2)(b) testified as a witness to this incident (BR10). § 87(2)(b) testified that on the incident date, § 87(2)(b) had been packing her things to leave § 87(2)(b) where she lives with § 87(2)(b) and his wife, so that she could move in with § 87(2)(b). § 87(2)(b) had been overprotected by her parents, and prior to this point, had not known that because she was § 87(2)(b) she could choose where she wished to live. The night before the incident, § 87(2)(b) had attempted to overdose on pills in order to commit suicide.

On the incident date, § 87(2)(b) called the police so that they could help her leave the house. § 87(2)(b) was waiting outside of § 87(2)(b) when PO Terrone and PO Crecca, and shortly afterwards, PO Canepa and PO Ingrassia arrived on scene. § 87(2)(b) spoke to the four MOS outside of the house. The four MOS told § 87(2)(b) to wait outside while they attempted to determine what was going on. § 87(2)(b)'s wife peered through the curtains, but did not open the front door of the house for the MOS despite the fact that the MOS knocked on the front door and said that they were the police. Eventually, § 87(2)(b) saw § 87(2)(b) open the door for the MOS. § 87(2)(b) did not witness anything else that happened, as she was outside of the house. § 87(2)(b) provided Inv. Ridge with the number for the Aided report generated as a result of the incident, so that the CCRB would have a record of what happened on the incident date. § 87(2)(b) did not wish to provide any further statement regarding the incident, as she did not want to dignify § 87(2)(b)'s complaint.

During the same phone call that § 87(2)(b) placed to Inv. Ridge, § 87(2)(b) also provided a brief statement in regards to this incident (BR11). On the incident date, § 87(2)(b) called 911 because she wanted the police to help her leave § 87(2)(b) as she no longer wished to live there. Sometime after she called 911, the four MOS arrived on scene. § 87(2)(b) opened the front door of the house for the police because she wanted to police inside the house in order to help her leave the house. § 87(2)(b) did not allow § 87(2)(b) to provide any further testimony regarding this allegation, as § 87(2)(b) did not wish § 87(2)(b) to become re-traumatized by testifying in greater detail about the incident.

During her interview at the CCRB, PO Jamie Terrone testified that on the incident date, she was on patrol with PO Crecca when she received a call about a suicidal EDP (BR12). PO Terrone and PO Crecca arrived at § 87(2)(b) and spoke with § 87(2)(b) who informed the two MOS that § 87(2)(b) was a § 87(2)(b) female who had just called her from inside the house and told her that she wanted to jump out of her bedroom window on the second floor of the house. § 87(2)(b) did not specifically request that the MOS go inside the house, but she did request that they help § 87(2)(b) who at that time was inside the house.

PO Terrone and PO Crecca knocked on the front door multiple times, but heard no response. PO Terrone could not see into the house, nor could she hear what was going on inside the house. After knocking on the door for about two to three minutes, § 87(2)(b) opened the door for PO Terrone and PO Crecca. When she opened the door, § 87(2)(b) opened the door wide enough for an average person to fit in the door. Shortly after § 87(2)(b) opened the door for PO Terrone and PO Crecca, § 87(2)(b) said "Hi," to the two MOS, walked back to a couch in the living room, and sat down. PO Terrone could not remember if § 87(2)(b) invited her and PO Crecca inside the house, but could remember that § 87(2)(b) continued to speak to her and PO Crecca as she made her way to the couch.

About five to ten minutes after PO Terrone and PO Crecca arrived, PO Canepa and PO Ingrassia arrived on scene. PO Terrone could not remember exactly what was going on as PO Canepa and PO Ingrassia arrived, but could remember that PO Canepa and PO Ingrassia did not have any conversation with the occupants of the house before going inside. At the time that PO Canepa and PO Ingrassia arrived at the house, the front door was completely open.

As PO Terrone was walking to the couch, she saw a woman who identified herself as § 87(2)(b)'s mother in the kitchen. § 87(2)(b)'s mother immediately began to yell at the MOS and told them that she wanted them to leave. PO Terrone focused on § 87(2)(b) and asked her if she was alright and what was going on. § 87(2)(b) told PO Terrone that she was not feeling well, § 87(2)(b) and that she wanted to go to the hospital to speak to someone there. PO Terrone checked § 87(2)(b)'s information, which confirmed that she was § 87(2)(b).

§ 87(2)(g)
§ 87(2)(g)
PO Crecca testified that PO Canepa and PO Ingrassia arrived on scene about a minute or two after he and PO Terrone arrived on scene. At this time, PO Crecca and PO Terrone were still outside of the house attempting to get inside. PO Canepa began to knock on the front door, but still no one opened it. After knocking on the door, PO Canepa attempted to open the door. This time PO Canepa was able to open the door. PO Canepa walked into the house, and was followed by PO Crecca and the other two MOS. After PO Crecca went inside the house, he heard § 87(2)(b)'s mother ask § 87(2)(b) if she had let the MOS inside the house, to which § 87(2)(b) responded that she had. Within 15 of the MOS arriving at the house, two EMTs arrived, evaluated § 87(2)(b) and determined that she needed to be taken to the hospital for further evaluation.

§ 87(2)(g)
§ 87(2)(g)
PO Canepa testified that § 87(2)(b) specifically told the MOS that § 87(2)(b) that she wished to move to § 87(2)(b)'s house.

§ 87(2)(g)
§ 87(2)(g)
PO Ingrassia testified that § 87(2)(b) informed the MOS that she had been calling the house, but no one inside was answering her calls. PO Ingrassia was attempting to look for another entrance to the house when the other MOS were attempting to open the door to the house. As he was coming to the front of the house, PO Ingrassia saw that the other three MOS were going inside. PO Ingrassia did not observe how the front door came to be open. Once inside the house, the fact that § 87(2)(b) appeared shy and was not speaking much with the MOS, in combination with the information received from § 87(2)(b) made PO Ingrassia believe that § 87(2)(b) was nervous and depressed.

People v. Greenleaf, 222 AD 2d 838 (1995) outlines three requirements that must be met to apply the emergency exception to the warrant requirement for an entry: "(1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by intent to arrest and seize evidence. (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (BR16)." These principles were applied in Brigham City v. Stuart, 547 U.S. 398 (2006) in which the Court ruled that the emergency exception applied when they possessed "an objectively reasonable basis for believing that an occupant is seriously injured or imminently threatened with such injury (BR17)."

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-D** be closed as **Exonerated**.

Allegation E—Force: Police Officer Nicholas Canepa used physical force against § 87(2)(b)

§ 87(2)(b) testified that he entered the house in a calm manner. § 87(2)(b)'s wife was sitting in the kitchen, and was “hysterical” and crying (BR01). There were two EMTs standing to the left of the couch in the living room. § 87(2)(b) saw that PO Crecca, PO Canepa, and PO Ingrassia were all standing in front of the stairs leading to the second floor of the house. These are situated to the left of the kitchen.

§ 87(2)(b)'s wife was “hysterical” and crying, and in response to § 87(2)(b) asking her about what was going on, she reiterated what she had already told him over the phone about the situation. § 87(2)(b) approached the three male MOS, and asked them in a calm tone of voice what was going on and where § 87(2)(b) was. None of the three male MOS responded to § 87(2)(b)'s question. § 87(2)(b) asked his wife where § 87(2)(b) was, to which she responded that § 87(2)(b) was upstairs.

§ 87(2)(b) began to go up the stairs when PO Canepa asked him where he was going and told him that he could not go upstairs. As PO Canepa said this, he took hold of § 87(2)(b)'s forearm of § 87(2)(b)'s left arm. § 87(2)(b) could not further describe what PO Canepa did physically to take hold of the forearm of his left arm. § 87(2)(b) told PO Canepa that he could not stop him from going up the stairs in his own house and that he needed to know what was going on with his daughter. § 87(2)(b) moved his arm away from PO Canepa so that it was no longer in his grasp, walked past PO Canepa, and began to go up the stairs. All three male MOS followed § 87(2)(b) up the stairs.

§ 87(2)(b) testified that she remained outside of the house throughout the course of the incident, and did not witness what happened after the MOS entered the house (BR10).

§ 87(2)(b) did not provide testimony regarding this allegation, as § 87(2)(b) only allowed § 87(2)(b) to speak briefly about the incident (BR11).

PO Terrone testified that around the time that PO Canepa and PO Ingrassia arrived on scene, she realized that § 87(2)(b) would need to put on shoes and a jacket before she could be transported to the hospital (BR12). PO Terrone asked § 87(2)(b) where these items were, to which § 87(2)(b) responded that they were upstairs. PO Terrone went with § 87(2)(b) upstairs while she changed, as PO Terrone was the only female MOS on scene.

While PO Terrone was upstairs with § 87(2)(b) in her bedroom, she heard § 87(2)(b) yelling “Get out of my house.” Shortly afterwards, PO Terrone heard someone running very quickly up the stairs. PO Terrone did not hear anyone respond to § 87(2)(b) but believed that this was partly because she could not really hear what was going on downstairs. PO Terrone at no point observed any MOS make physical contact with § 87(2)(b).

PO Crecca testified that around the time that PO Terrone went upstairs with § 87(2)(b) to get more clothing, § 87(2)(b) arrived at the house (BR13). At the time that § 87(2)(b) entered the house, PO Crecca, PO Canepa, and PO Ingrassia were all standing at the bottom of the stairs. § 87(2)(b) went directly to the three male MOS, and was yelling from the time he came inside the house. PO Crecca could not remember what § 87(2)(b) was yelling about. The three male MOS assumed that § 87(2)(b) was § 87(2)(b)'s father because § 87(2)(b)'s wife had earlier told them that her husband would be arriving soon. Shortly after § 87(2)(b) began to speak with the three male MOS, he ran up the stairs. § 87(2)(b) did not tell the three male MOS why he was going up the stairs. PO Crecca could not remember any MOS telling § 87(2)(b) that he could not go up the stairs. None of the MOS on scene did anything to physically prevent § 87(2)(b) from going up the stairs. As § 87(2)(b) went past the three male MOS and up the stairs, he did not make physical contact with any of the MOS. As soon as § 87(2)(b) began to run up the stairs, PO Canepa began to run after him PO Crecca could not remember any MOS making any physical contact with § 87(2)(b) at any point during the incident.

upstairs for no reason, they were violating his privacy, so he asked the three male MOS to go downstairs. Eventually one of the MOS went down the stairs, and was soon followed by the other three MOS.

On the first floor of the house, § 87(2)(b) told PO Terrone that he did not have a problem with § 87(2)(b) being taken to the hospital. While § 87(2)(b) was speaking with PO Terrone PO Canepa told § 87(2)(b) that he needed to calm down, and that he had “come in hot.” At this point, PO Canepa and § 87(2)(b) were face-to-face, while the other three MOS circled around § 87(2)(b). The EMTs, who had remained downstairs throughout the incident, § 87(2)(b)’s wife, and § 87(2)(b) watched in silence from a distance. PO Canepa told § 87(2)(b) that he did not know who he was, that § 87(2)(b) could have gone upstairs and jumped on § 87(2)(b) and that § 87(2)(b) was not being reasonable. § 87(2)(b) responded that he was being reasonable, and that he had just been inquiring about what was going on. PO Canepa told § 87(2)(b) “You are not in charge of shit. We’re in fucking charge. I don’t know who the fuck you are. Get the fuck out of here.” At one point, PO Canepa also said something along the lines of “I’ve had enough of this shit.”

PO Canepa said all of this in a loud voice to § 87(2)(b). § 87(2)(b) believed that PO Canepa was attempting to provoke so that he could put him in a position where he could be arrested, so § 87(2)(b) told PO Canepa that he was not going to bait him. PO Canepa responded that he was not attempting to bait § 87(2)(b) and said something along the lines of “I just want you to chill the f out and be a nice guy.”

Videos #15, #16, and #17 capture audio of the incident (BR19-21). In Video #15, one can hear a male voice which sounds like that of PO Canepa tell male voice that sounds like that of § 87(2)(b) that “I don’t know if you’re gonna grab her upstairs.” One can also hear other parts of the conversation which § 87(2)(b) alleged took place, such as a male voice that sounds like that of PO Canepa saying “I think you’re being a little irrational” in Video #15, and part of the conversation between PO Terrone and § 87(2)(b) regarding § 87(2)(b) being taken to the hospital.

Video #17 captures a male voice that sounds like that of PO Canepa at the 00:05 minute mark saying “We’re in fucking charge here,” and at 00:13 “you come in hot ...” At the 00:17 minute mark, the same male voice can also be heard saying “Do I fucking know you,” and also can be heard saying “so chill the fuck out” at the 00:20 minute mark. The remark PO Canepa allegedly made about § 87(2)(b) needing “be a nice person” can also be heard at the 00:28 minute mark by the same male voice.



201702922_20170426_1415_DM.mp4



201702922_20170426_1418_DM.mp4



201702922_20170426_1421_DM.mp4

Three to five minutes after PO Canepa began to use profanity, § 87(2)(b) the two EMTs, and the four MOS left the scene. § 87(2)(b) provided no further context as to how the profanity was used, nor did he describe exact how his interaction with PO Canepa concluded.

§ 87(2)(b) testified that she remained outside of the house throughout the course of the incident, and did not witness what happened after the MOS entered the house (BR10).

§ 87(2)(b) did not provide in great detail regarding this allegation, as § 87(2)(b) only allowed § 87(2)(b) to speak briefly about the incident (BR11). § 87(2)(b) testified that none of the four MOS used profanity at any point during the incident.

PO Terrone testified that during the incident, § 87(2)(b) was not speaking with any one MOS more than the others (BR12). PO Terrone could not recall PO Canepa using any of the alleged profanity

during the incident, nor could she recall PO Canepa using any profanity whatsoever during the incident. PO Terrone could not remember if § 87(2)(b) was using any profanity during the incident, but could remember that § 87(2)(b) yelled throughout the incident about how he did not want the four MOS in his house. When shown Video #17, PO Terrone testified that she could not recall the conversation captured in the video taking place during the incident. PO Terrone could not identify any voices in the video.

§ 87(2)(g)
PO Crecca could not remember if PO Canepa asked § 87(2)(b) who he was, and could not remember PO Canepa saying “Do I fucking know you” or “I don’t know who the fuck you are” during the incident. PO Canepa did not tell § 87(2)(b) to leave the house at any point, and did not say “Get the fuck out of here.” PO Crecca did not hear PO Canepa say anything to calm § 87(2)(b) down, and did not hear PO Canepa say “Chill the fuck out” at any point. PO Crecca did not hear § 87(2)(b) say “I’ve had enough of this shit.” PO Crecca could not remember if PO Canepa told § 87(2)(b) that the police were in charge in the situation, nor did PO Crecca hear PO Canepa say “You’re not in charge of shit” or “We’re in fucking charge here.” § 87(2)(g)

PO Canepa testified that while he, § 87(2)(b) and the other MOS were going down the stairs, the father yelled at the MOS again about how they had violated the law by entering his house (BR14). All three male MOS, including PO Canepa, had to tell § 87(2)(b) to calm down. At the beginning of the incident, PO Canepa used a calm tone of voice to speak with § 87(2)(b). However, as time passed, and § 87(2)(b) continued to yell without stopping, PO Canepa began to use a more firm and raised tone of voice to speak with § 87(2)(b). At times, the other MOS also had to use raised voice to speak with § 87(2)(b). PO Canepa could not remember if § 87(2)(b) used profanity during the incident, and also could not remember if he himself used profanity during the incident. PO Canepa at no point asked “Do I fucking know you?” PO Canepa did not think that he said “Do I know who the fuck you are?” PO Canepa at no point asked the father to leave the house, and did not say “Get the fuck out of here,” although he did ask § 87(2)(b) to come downstairs. At one point, PO Canepa told § 87(2)(b) that the MOS were there to help, and that they were in charge for the time being. However, PO Canepa doubted that he said “You’re not in charge of shit” and did not think that he said “We’re in fucking charge here.” Although PO Canepa told § 87(2)(b) to calm down, he at no point told § 87(2)(b) to “Chill the fuck out.” PO Canepa did not think he said “I’ve had enough of this shit.” When shown Video #17, PO Canepa testified that this video captured the end of the incident. PO Canepa stated that he could hear that § 87(2)(b) was yelling in the video. When asked in specific which voice was the father’s PO Canepa could not identify which was the father’s because there were so many voices speaking all at the same time. PO Canepa could not identify his own voice in the video for the same reason.

§ 87(2)(g)
PO Ingrassia testified that PO Canepa did not say “Get the fuck out of here” and “Chill the fuck out.” PO Ingrassia could not remember if PO Canepa used the remainder of the alleged profanity. PO Ingrassia testified that at least one, if not more, of the MOS told § 87(2)(b) that they were in charge because § 87(2)(b) went from MOS to MOS attempting to get a different response. After the MOS made it back downstairs, § 87(2)(b) continued to yell, and put his fingers’ in MOS’ faces. This made all of the MOS need to be a bit more firm with § 87(2)(b). PO Ingrassia believed that the MOS one scene may have used a small amount of profanity, but could not remember the specific use of any profanity by any specific MOS. PO Ingrassia attributed the use of any profanity on the part of the MOS to the fact that the situation was made stressful by § 87(2)(b)’s behavior, as he had been yelling and had run up the stairs when PO Terrone had been the only MOS upstairs. Upon viewing Video #17, PO Ingrassia acknowledged that he could hear profanity being used, and that the voice heard near the end of the video saying “I just need you to be a nice person or something” was not his, but that of one of the other two male MOS.

Patrol Guide 203-09: Public Contact—General states that members of the service must “be courteous and respectful (BR22).”

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation F** be closed as **Substantiated**.

Squad: 8

Squad Leader: _____

Title/Signature	Print	Date
-----------------	-------	------

Page 10

CCRB – Confidential